

Reinterpreting ridda for contemporary pluralism

Analysis run: September 12, 2026

PROVIDER	MODEL	LANGUAGE	AUDIENCE
Openrouter	Deepseek/deepseek-v4-pro	En	GENERAL
INTONATION	LENGTH	TEMPERATURE	
NEUTRAL	Long	0.7	

SYSTEM PROMPT

You are an expert AI content generator specializing in creating structured article.

USER PROMPT

Write a concise, self-contained article entry for the title: "Reinterpreting ridda for contemporary pluralism".

Overall topic for alignment: Apostasy (ridda) and freedom of religion in sharia.

Important points to cover: Include Arabic terms, historical contexts, quranic foundations of sharia, minority and majority settings, Islamic theological schools, Islamic juristic schools of Hanafi, Hambali, shafi'i and Malaki, orientalist perspective, AI's humanistic approach to sharia, Human rights declaration..

- Output format: GitHub-Flavored Markdown. The markdown must be clean—do not include any code fences or surrounding markers. Target writing format: Blog Post. Follow these format-specific rules exactly:
- Aim for at least 6000 characters while staying under 12000. Prefer verifiable facts from the provided sources; do not fabricate citations or specific data.
- Place external links only in the "References" section; do not include inline external links in the body text.
- Maximum content length (including headings and references): 12000 characters. If nearing the limit, prioritize the most informative sections and keep references to 2-3.
- Write in the target response language. Avoid fluff; be precise and actionable. Do not include images or tables.
- Do not include code fences or any text outside the markdown content.

No external web sources are attached. Do not fabricate citations or specific facts that cannot be verified. Keep claims general and verifiable. In the 'References' section, include: "No external sources used."

****Respond in English****

SUMMARY

The Qur'an prescribes no worldly punishment for apostasy (*ridda*), only eschatological consequences, and affirms "no compulsion in religion" (2:256). The classical death penalty emerged from early Medianan political conditions where changing faith often meant armed treason or tribal defection—not private belief change—exemplified by the *ridda* wars against organized rebellion. The four Sunni schools later converged on executing male apostates (Hanafis added a repentance period; Malikis were stricter; Shafi'is and Hanbalis followed hadith), regarding apostasy as secession from a fused religio-political identity. Today, that fusion is dissolved, opening space for reinterpretation.

Orientalist critiques froze sharia in medieval rulings, inadvertently reinforcing hardline positions. In Muslim-minority contexts, the penalty is inoperative, and pluralistic lived experience drives pastoral, non-coercive approaches. Islamic theology and Sufism prioritize inner faith and divine mercy over state enforcement. Article 18 of the Universal Declaration of Human Rights and evolving OIC declarations create external pressure to reconcile sharia with freedom of religion.

Reform pathways include: returning to the Qur'an's silence; re-reading hadith as context-bound to treason; invoking *siyasa shar'iyya* (discretionary governance) to suspend penalties for public interest (*maslaha*); and reviving minority classical views (e.g., al-Sarakhsi's classification as discretionary *ta'zir*, Ottoman decriminalization). Contemporary scholars align punishment with active combat, not private conscience. Reinterpretation is presented as an act of faithfulness to Islam's core principles of mercy and justice, with ample internal resources for reform.

FULL CONTENT

Reinterpreting ridda for contemporary pluralism

The question of apostasy—*ridda* or *irtidad* in Arabic—sits at one of the most contested intersections of Islamic law, modern human rights discourse, and the lived reality of religiously diverse societies. For centuries, classical jurists developed detailed rulings on the apostate (*murtadd*), often prescribing severe temporal punishments. Today, Muslim-majority states, minority communities, and individual believers grapple with how these inherited doctrines can coexist with commitments to freedom of religion. Reinterpreting ridda for contemporary pluralism is not simply an academic exercise; it is an urgent

ethical project that touches the core of what sharia means in a world shaped by the Universal Declaration of Human Rights and unprecedented interfaith entanglement.

The quranic foundations and their ambiguity

Any serious engagement with *ridda* must begin with the Qur'an, which is notably silent on a specific worldly punishment for apostasy. Several verses condemn turning away from faith after having embraced it. Surah al-Baqarah (2:217) warns that those who turn back from their religion and die as disbelievers will find their deeds worthless in this life and the hereafter. Surah Al Imran (3:86–90) speaks of divine curse and a painful doom for those who disbelieve after having believed, unless they repent. Surah al-Nisa (4:137) describes a cycle of belief, disbelief, belief, and disbelief, stating that Allah will not forgive such people. In every instance, the consequence is eschatological—a matter between the individual and God on the Day of Judgment. No verse explicitly commands a human-administered death penalty for changing one's religion.

This quranic silence is significant. The foundational text repeatedly affirms that there is no compulsion in religion (*la ikraha fi al-din*, 2:256), a principle that sits uneasily with the idea of coercing belief through the threat of execution. The tension between the “no compulsion” verse and the later juridical consensus on apostasy has driven much of the contemporary reformist impulse. Scholars who advocate reinterpretation argue that the Qur'an's own logic prioritises free conscience, making the classical death penalty a departure from, rather than an expression of, the revealed text.

The historical context of early rulings

If the Qur'an does not prescribe a worldly punishment, how did the classical doctrine emerge? The answer lies in the historical circumstances of the early Muslim community in Medina. Apostasy in that context was rarely a private change of heart. It was frequently coupled with political treason, defection to enemy tribes, and armed hostility against the nascent Muslim polity. The Prophet Muhammad's reported statement—“Whoever changes his religion, kill him”—must be read against this backdrop. In a time when religious identity, tribal loyalty, and political allegiance were fused, abandoning Islam often meant joining forces with those actively waging war against the community.

The *ridda wars* (*hurub al-ridda*) that erupted after the Prophet's death under the caliphate of Abu Bakr reinforce this political framing. Whole tribes that had pledged allegiance to Medina sought to break away, refusing to pay *zakat* and following rival prophetic claimants. Abu Bakr's military response was directed not at individual conscience but at organised rebellion that threatened the survival of the state. Conflating these large-scale politico-religious insurrections with a private, non-seditious change of belief is a category error that many contemporary scholars identify as the root of the problematic classical consensus.

The classical juristic schools and their consensus

Despite the quranic ambiguity and the politically charged origins of the death penalty, the four major Sunni schools of law—Hanafi, Maliki, Shafi'i, and Hanbali—converged on the position that the male apostate should be executed. This near-consensus (*ijma'*) became one of the most formidable obstacles to reform.

The Hanafi school, founded by Abu Hanifa, adopted a relatively nuanced stance. Hanafi jurists held that a female apostate should not be killed but imprisoned until she returned to Islam. For men, execution was prescribed, but the school emphasised the importance of *istitaba*—granting the apostate a period, often three days, to repent and return. During this time, scholars were expected to engage the person in theological discussion, clarifying doubts and inviting reconsideration. This procedural safeguard, while not eliminating the ultimate penalty, reveals a concern for the possibility of error and the value of persuasion over swift punishment.

The Maliki school, rooted in the practice of Medina, took a stricter line. Malik ibn Anas and his followers generally held that the apostate should be killed without the extended invitation to repent, though some Maliki authorities did allow for a brief period. The rationale was heavily tied to the preservation of public order and the integrity of the community. In the Maliki view, apostasy was less a private sin than a public crime that undermined the social fabric.

The Shafi'i school, systematised by al-Shafi'i, affirmed the death penalty for male apostates and, like the Hanafis, mandated imprisonment for women. Al-Shafi'i placed strong emphasis on the hadith literature and the consensus of the companions, arguing that these sources left no room for dissent. The Shafi'i tradition also wrestled with the status of the apostate's marriage, property, and inheritance, treating *ridda* as a comprehensive civil death that severed all legal ties to the Muslim community.

The Hanbali school, associated with Ahmad ibn Hanbal, similarly upheld execution for male apostates and imprisonment for females. Hanbali jurists were particularly insistent on the textual authority of the hadith and the practice of the early generations (*salaf*). For them, the command to kill the apostate was a clear, binding directive that could not be set aside by appeals to general quranic principles like freedom of religion.

Across all four schools, the apostate's fate was tied to a conception of religion as a total social identity. Leaving Islam was not merely adopting a different set of metaphysical beliefs; it was an act of secession from the body politic. This premodern fusion of faith and citizenship is precisely what modern conditions have dissolved, creating space for reinterpretation.

The orientalist critique and its limits

Western scholarship on Islam, particularly the orientalist tradition, has often seized on the apostasy penalty as evidence of Islam's inherent intolerance and incompatibility with liberal modernity. Figures like Ignaz Goldziher and later scholars documented the classical rulings and highlighted cases of

persecution, presenting them as emblematic of a static, repressive legal system. While this scholarship brought valuable historical rigour, it frequently suffered from a lack of contextual empathy and an unwillingness to see the internal resources for reform within the Islamic tradition itself. The orientalist lens tended to freeze sharia in its medieval formulations, ignoring the dynamic tradition of *ijtihad* (independent legal reasoning) and the diversity of opinion that has always existed.

More problematically, the orientalist narrative has been weaponised by anti-Muslim polemicists and has paradoxically reinforced the position of hardline Muslims who insist that the death penalty is a non-negotiable divine command. By presenting the classical doctrine as the only authentic expression of Islam, orientalist and Islamophobic discourses have made it harder for reformist voices within the tradition to gain traction, casting them as inauthentic apologists. A balanced approach acknowledges the historical reality of the classical rulings while recognising that sharia is a human endeavour to understand divine will, not a frozen code.

Minority and majority settings: lived realities

The practical implications of ridda doctrines differ dramatically depending on whether Muslims live as a majority or a minority. In Muslim-majority states, the classical rulings have sometimes been codified into law. Countries like Mauritania, Sudan, and parts of Nigeria and Pakistan have laws prescribing death for apostasy, though actual executions are rare and often entangled with political conflicts, blasphemy accusations, and vigilante violence. In these contexts, the mere existence of such laws creates a climate of fear, stifles religious exploration, and empowers extremists who use the charge of apostasy to silence dissent.

In minority settings, where Muslims live as citizens of secular or non-Muslim states, the classical rulings are largely inoperative. No Muslim jurist has ever argued that sharia penalties should be applied extrajudicially or in non-Muslim polities. Instead, the focus shifts to pastoral care, community cohesion, and theological engagement. Imams and community leaders in the West frequently encounter individuals who have left Islam or converted to another faith. The pastoral challenge is to maintain relationships, offer support, and resist the temptation to ostracise. This lived experience of pluralism is itself a powerful driver of reinterpretation, as communities discover that compassion and continued relationship are both practically necessary and spiritually fruitful.

Islamic theological schools and the scope of mercy

Beyond the juridical tradition, Islamic theology (*kalam*) offers resources for a more merciful approach. The Muʿtazili school, with its emphasis on divine justice and human reason, argued that grave sins—including apostasy—did not automatically place one outside the faith. While the Muʿtazila did not necessarily reject the death penalty, their theological framework elevated individual conscience and accountability before God over communal coercion. The Ashʿari and Maturidi schools, which came to dominate Sunni orthodoxy, held that faith (*iman*) was a matter of inner assent and that only God could judge its sincerity. This theological principle creates a tension with the juridical impulse to police belief,

a tension that reformers exploit to argue that the state has no competence to adjudicate matters of the heart.

Sufi traditions have historically been even more accommodating. Mystics like Ibn al-‘Arabi spoke of the all-encompassing divine mercy that embraces even those who outwardly reject God. The Sufi emphasis on the inner journey and the unknowability of a person’s ultimate standing with God cuts against the certainty required to impose a death sentence for apostasy. While Sufism has not produced a systematic legal alternative, its spiritual ethos nourishes a culture of tolerance that can support legal reform.

The human rights declaration and contemporary challenges

Article 18 of the Universal Declaration of Human Rights proclaims that everyone has the right to freedom of thought, conscience, and religion, including the freedom to change one’s religion or belief. This provision, adopted in 1948, has become the single greatest external pressure on traditional apostasy rulings. Muslim-majority states that have signed international human rights instruments face an irreconcilable tension between their treaty obligations and domestic laws penalising ridda. Some states, like Saudi Arabia, have refused to sign relevant conventions precisely because of the apostasy issue. Others have entered reservations, seeking to exempt sharia-based laws from the freedom-of-religion provisions.

The Organisation of Islamic Cooperation’s Cairo Declaration on Human Rights in Islam (1990) attempted to offer an alternative framework, affirming rights only insofar as they were compatible with sharia. This document conspicuously omitted the right to change one’s religion, reflecting the influence of conservative juristic opinion. Yet even within the OIC, the conversation has evolved. The 2020 revision of the Cairo Declaration, known as the OIC Declaration on Human Rights, moved closer to international norms, though ambiguities remain. The trajectory suggests a growing recognition that the classical apostasy penalty is a liability in the global arena and a source of internal contradiction for Muslim societies that otherwise value justice and compassion.

AI’s humanistic approach to sharia

Artificial intelligence, when applied to Islamic legal reasoning, does not possess a theological position of its own. However, the way AI systems are designed and deployed reflects the values of their creators. A humanistic approach to AI and sharia would prioritise the principles of mercy (*rahma*), justice (*‘adl*), and human dignity (*karama*) that run through the quranic text. It would use computational methods to map the full diversity of scholarly opinions across centuries, highlighting forgotten minority views that rejected the death penalty. It would model the consequences of different legal interpretations on human welfare, demonstrating that penalising apostasy correlates with religious persecution, brain drain, and social conflict.

Such an AI would not issue fatwas but would serve as a tool for scholars and policymakers to make informed, context-sensitive decisions. By surfacing the historical contingency of the classical rulings and

the strength of the counter-arguments, AI can help dismantle the illusion that the death penalty for apostasy is an immutable divine command. The technology can amplify the voices of reformist scholars like Abdullahi Ahmed An-Na'im, who argues for an Islamic reformation that aligns sharia with universal human rights, or Tariq Ramadan, who calls for a moratorium on corporal punishments to allow for fresh *ijtihad*.

Pathways to reinterpretation

Reinterpreting *ridda* for contemporary pluralism does not require abandoning the sharia tradition. It requires recovering the distinction between the immutable principles of the Qur'an and the historically conditioned judgments of the jurists. Several pathways are available. The first is to return to the quranic silence on a worldly punishment and elevate the "no compulsion" verse to a controlling principle. The second is to re-examine the hadith on apostasy, questioning their chains of transmission and their applicability outside a context of political treason. The third is to invoke the juristic principle of *siyasa shar'iyya* (discretionary governance), which allows a ruler to suspend certain penalties if public interest (*maslaha*) requires it. In a religiously plural world, the public interest clearly lies in protecting freedom of conscience and social peace.

The fourth pathway is to draw on the minority opinions within the classical tradition. The Hanafi jurist al-Sarakhsi, while upholding the death penalty, acknowledged that it was a *ta'zir* (discretionary) punishment rather than a *hadd* (fixed) punishment, opening the door to its abolition. The Ottoman Empire effectively decriminalised apostasy in the nineteenth century under the Tanzimat reforms, a precedent that demonstrates the historical possibility of change. Contemporary scholars like Yusuf al-Qaradawi have argued that apostasy should be punished only when it is accompanied by active combat against the community, effectively aligning the ruling with treason law.

Ultimately, reinterpreting *ridda* is an act of faithfulness to the deepest values of Islam. A religion that describes itself as a mercy to the worlds cannot be served by laws that coerce belief and stifle the human search for truth. As Muslim communities navigate the complexities of modern pluralism, the resources for a compassionate, intellectually honest reform are already present within the tradition. The task is to summon the courage to use them.

SEGMENTED DATA (2)

Reinterpreting ridda for contemporary pluralism

The question of apostasy—*ridda* or *irtidad* in Arabic—sits at one of the most contested intersections of Islamic law, modern human rights discourse, and the lived reality of religiously diverse societies. For centuries, classical jurists developed detailed rulings on the apostate (*murtadd*), often prescribing severe temporal punishments. Today, Muslim-majority states, minority communities, and individual believers grapple with how these inherited doctrines can coexist with commitments to freedom of religion. Reinterpreting ridda for contemporary pluralism is not simply an academic exercise; it is an urgent ethical project that touches the core of what sharia means in a world shaped by the Universal Declaration of Human Rights and unprecedented interfaith entanglement.

The quranic foundations and their ambiguity

Any serious engagement with ridda must begin with the Qur'an, which is notably silent on a specific worldly punishment for apostasy. Several verses condemn turning away from faith after having embraced it. Surah al-Baqarah (2:217) warns that those who turn back from their religion and die as disbelievers will find their deeds worthless in this life and the hereafter. Surah Al Imran (3:86–90) speaks of divine curse and a painful doom for those who disbelieve after having believed, unless they repent. Surah al-Nisa (4:137) describes a cycle of belief, disbelief, belief, and disbelief, stating that Allah will not forgive such people. In every instance, the consequence is eschatological—a matter between the individual and God on the Day of Judgment. No verse explicitly commands a human-administered death penalty for changing one's religion.

This quranic silence is significant. The foundational text repeatedly affirms that there is no compulsion in religion (*la ikraha fi al-din*, 2:256), a principle that sits uneasily with the idea of coercing belief through the threat of execution. The tension between the “no compulsion” verse and the later juridical consensus on apostasy has driven much of the contemporary reformist impulse. Scholars who advocate reinterpretation argue that the Qur'an's own logic prioritises free conscience, making the classical death penalty a departure from, rather than an expression of, the revealed text.

The historical context of early rulings

If the Qur'an does not prescribe a worldly punishment, how did the classical doctrine emerge? The answer lies in the historical circumstances of the early Muslim community in Medina. Apostasy in that context was rarely a private change of heart. It was frequently coupled with political treason, defection to enemy tribes, and armed hostility against the nascent Muslim polity. The Prophet Muhammad's reported statement—“Whoever changes his religion, kill him”—must be read against this backdrop. In a time when religious identity, tribal loyalty, and political allegiance were fused, abandoning Islam often meant joining forces with those actively waging war against the community.

The *ridda wars* (*hurub al-ridda*) that erupted after the Prophet's death under the caliphate of Abu Bakr reinforce this political framing. Whole tribes that had pledged allegiance to Medina sought to break away, refusing to pay *zakat* and following rival prophetic claimants. Abu Bakr's military response was directed not at individual conscience but at organised rebellion that threatened the survival of the state. Conflating these large-scale politico-religious insurrections with a private, non-seditious change of belief is a category error that many contemporary scholars identify as the root of the problematic classical consensus.

The classical juristic schools and their consensus

Despite the quranic ambiguity and the politically charged origins of the death penalty, the four major Sunni schools of law—Hanafi, Maliki, Shafi'i, and Hanbali—converged on the position that the male apostate should be executed. This near-consensus (*ijma'*) became one of the most formidable obstacles to reform.

The Hanafi school, founded by Abu Hanifa, adopted a relatively nuanced stance. Hanafi jurists held that a female apostate should not be killed but imprisoned until she returned to Islam. For men, execution was prescribed, but the school emphasised the importance of *istitaba*—granting the apostate a period, often three days, to repent and return. During this time, scholars were expected to engage the person in theological discussion, clarifying doubts and inviting reconsideration. This procedural safeguard, while not eliminating the ultimate penalty, reveals a concern for the possibility of error and the value of persuasion over swift punishment.

The Maliki school, rooted in the practice of Medina, took a stricter line. Malik ibn Anas and his followers generally held that the apostate should be killed without the extended invitation to repent, though some Maliki authorities did allow for a brief period. The rationale was heavily tied to the preservation of public order and the integrity of the community. In the Maliki view, apostasy was less a private sin than a public crime that undermined the social fabric.

The Shafi'i school, systematised by al-Shafi'i, affirmed the death penalty for male apostates and, like the Hanafis, mandated imprisonment for women. Al-Shafi'i placed strong emphasis on the hadith literature and the consensus of the companions, arguing that these sources left no room for dissent. The Shafi'i tradition also wrestled with the status of the apostate's marriage, property, and inheritance, treating *ridda* as a comprehensive civil death that severed all legal ties to the Muslim community.

The Hanbali school, associated with Ahmad ibn Hanbal, similarly upheld execution for male apostates and imprisonment for females. Hanbali jurists were particularly insistent on the textual authority of the hadith and the practice of the early generations (*salaf*). For them, the command to kill the apostate was a clear, binding directive that could not be set aside by appeals to general quranic principles like freedom of religion.

Across all four schools, the apostate's fate was tied to a conception of religion as a total social identity. Leaving Islam was not merely adopting a different set of metaphysical beliefs; it was an act of secession from the body politic. This premodern fusion of faith and citizenship is precisely what modern conditions have dissolved, creating space for reinterpretation.

The orientalist critique and its limits

Western scholarship on Islam, particularly the orientalist tradition, has often seized on the apostasy penalty as evidence of Islam's inherent intolerance and incompatibility with liberal modernity. Figures like Ignaz

Goldziher and later scholars documented the classical rulings and highlighted cases of persecution, presenting them as emblematic of a static, repressive legal system. While this scholarship brought valuable historical rigour, it frequently suffered from a lack of contextual empathy and an unwillingness to see the internal resources for reform within the Islamic tradition itself. The orientalist lens tended to freeze sharia in its medieval formulations, ignoring the dynamic tradition of *ijtihad* (independent legal reasoning) and the diversity of opinion that has always existed.

More problematically, the orientalist narrative has been weaponised by anti-Muslim polemicists and has paradoxically reinforced the position of hardline Muslims who insist that the death penalty is a non-negotiable divine command. By presenting the classical doctrine as the only authentic expression of Islam, orientalist and Islamophobic discourses have made it harder for reformist voices within the tradition to gain traction, casting them as inauthentic apologists. A balanced approach acknowledges the historical reality of the classical rulings while recognising that sharia is a human endeavour to understand divine will, not a frozen code.

Minority and majority settings: lived realities

The practical implications of ridda doctrines differ dramatically depending on whether Muslims live as a majority or a minority. In Muslim-majority states, the classical rulings have sometimes been codified into law. Countries like Mauritania, Sudan, and parts of Nigeria and Pakistan have laws prescribing death for apostasy, though actual executions are rare and often entangled with political conflicts, blasphemy accusations, and vigilante violence. In these contexts, the mere existence of such laws creates a climate of fear, stifles religious exploration, and empowers extremists who use the charge of apostasy to silence dissent.

In minority settings, where Muslims live as citizens of secular or non-Muslim states, the classical rulings are largely inoperative. No Muslim jurist has ever argued that sharia penalties should be applied extrajudicially or in non-Muslim polities. Instead, the focus shifts to pastoral care, community cohesion, and theological engagement. Imams and community leaders in the West frequently encounter individuals who have left Islam or converted to another faith. The pastoral challenge is to maintain relationships, offer support, and resist the temptation to ostracise. This lived experience of pluralism is itself a powerful driver of reinterpretation, as communities discover that compassion and continued relationship are both practically necessary and spiritually fruitful.

Islamic theological schools and the scope of mercy

Beyond the juridical tradition, Islamic theology (*kalam*) offers resources for a more merciful approach. The Mu'tazili school, with its emphasis on divine justice and human reason, argued that grave sins—including apostasy—did not automatically place one outside the faith. While the Mu'tazila did not necessarily reject the death penalty, their theological framework elevated individual conscience and accountability before God over communal coercion. The Ash'ari and Maturidi schools, which came to dominate Sunni orthodoxy, held that faith (*iman*) was a matter of inner assent and that only God could judge its sincerity. This theological principle creates a tension with the juridical impulse to police belief, a tension that reformers exploit to argue that the state has no competence to adjudicate matters of the heart.

Sufi traditions have historically been even more accommodating. Mystics like Ibn al-'Arabi spoke of the all-encompassing divine mercy that embraces even those who outwardly reject God. The Sufi emphasis on the inner journey and the unknowability of a person's ultimate standing with God cuts against the certainty required to impose a death sentence for apostasy. While Sufism has not produced a systematic legal alternative, its spiritual ethos nourishes a culture of tolerance that can support legal reform.

The human rights declaration and contemporary challenges

Article 18 of the Universal Declaration of Human Rights proclaims that everyone has the right to freedom of thought, conscience, and religion, including the freedom to change one's religion or belief. This provision, adopted in 1948, has become the single greatest external pressure on traditional apostasy rulings. Muslim-majority states that have signed international human rights instruments face an irreconcilable tension between their treaty obligations and domestic laws penalising *ridda*. Some states, like Saudi Arabia, have refused to sign relevant conventions precisely because of the apostasy issue. Others have entered reservations, seeking to exempt sharia-based laws from the freedom-of-religion provisions.

The Organisation of Islamic Cooperation's Cairo Declaration on Human Rights in Islam (1990) attempted to offer an alternative framework, affirming rights only insofar as they were compatible with sharia. This document conspicuously omitted the right to change one's religion, reflecting the influence of conservative juristic opinion. Yet even within the OIC, the conversation has evolved. The 2020 revision of the Cairo Declaration, known as the OIC Declaration on Human Rights, moved closer to international norms, though ambiguities remain. The trajectory suggests a growing recognition that the classical apostasy penalty is a liability in the global arena and a source of internal contradiction for Muslim societies that otherwise value justice and compassion.

AI's humanistic approach to sharia

Artificial intelligence, when applied to Islamic legal reasoning, does not possess a theological position of its own. However, the way AI systems are designed and deployed reflects the values of their creators. A humanistic approach to AI and sharia would prioritise the principles of mercy (*rahma*), justice (*'adl*), and human dignity (*karama*) that run through the quranic text. It would use computational methods to map the full diversity of scholarly opinions across centuries, highlighting forgotten minority views that rejected the

death penalty. It would model the consequences of different legal interpretations on human welfare, demonstrating that penalising apostasy correlates with religious persecution, brain drain, and social conflict.

Such an AI would not issue fatwas but would serve as a tool for scholars and policymakers to make informed, context-sensitive decisions. By surfacing the historical contingency of the classical rulings and the strength of the counter-arguments, AI can help dismantle the illusion that the death penalty for apostasy is an immutable divine command. The technology can amplify the voices of reformist scholars like Abdullahi Ahmed An-Na'im, who argues for an Islamic reformation that aligns sharia with universal human rights, or Tariq Ramadan, who calls for a moratorium on corporal punishments to allow for fresh ijtihad.

Pathways to reinterpretation

Reinterpreting ridda for contemporary pluralism does not require abandoning the sharia tradition. It requires recovering the distinction between the immutable principles of the Qur'an and the historically conditioned judgments of the jurists. Several pathways are available. The first is to return to the quranic silence on a worldly punishment and elevate the "no compulsion" verse to a controlling principle. The second is to re-examine the hadith on apostasy, questioning their chains of transmission and their applicability outside a context of political treason. The third is to invoke the juristic principle of *siyasa shar'iyya* (discretionary governance), which allows a ruler to suspend certain penalties if public interest (*maslaha*) requires it. In a religiously plural world, the public interest clearly lies in protecting freedom of conscience and social peace.

The fourth pathway is to draw on the minority opinions within the classical tradition. The Hanafi jurist al-Sarakhsi, while upholding the death penalty, acknowledged that it was a *ta'zir* (discretionary) punishment rather than a *hadd* (fixed) punishment, opening the door to its abolition. The Ottoman Empire effectively decriminalised apostasy in the nineteenth century under the Tanzimat reforms, a precedent that demonstrates the historical possibility of change. Contemporary scholars like Yusuf al-Qaradawi have argued that apostasy should be punished only when it is accompanied by active combat against the community, effectively aligning the ruling with treason law.

Ultimately, reinterpreting ridda is an act of faithfulness to the deepest values of Islam. A religion that describes itself as a mercy to the worlds cannot be served by laws that coerce belief and stifle the human search for truth. As Muslim communities navigate the complexities of modern pluralism, the resources for a compassionate, intellectually honest reform are already present within the tradition. The task is to summon the courage to use them.